

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/21/26 TIME: 9:00 A.M. DEPT: G CASE NO: FL0000445

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER:

CLERK: J. CHARIFA

PETITIONER: JULIAN EMMANUELLE STEIN	
and	
RESPONDENT: RACHEL LAERMAN	

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD CUSTODY/VISITATION

RULING

Appearances required.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/21/26 TIME: 9:00 A.M. DEPT: G CASE NO: FL0001799

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER:

CLERK: J. CHARIFA

PETITIONER: EVA KLEIN

and

RESPONDENT: DANIEL GEORGE
ERMAN

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD/SPOUSAL SUPPORT;
ATTORNEY’S FEES; ORDER SEALING SETTLEMENT 2) REQUEST FOR ORDER – NEW
TRIAL – SEPARATE TRIAL 3) CASE PROGRESS CONFERENCE

RULING

This matter is before the Court on two April 08, 2026 Requests for Order (RFO) filed by Petitioner Eva Klein (Mother) which collectively sought: a trial on the issue of whether Mother may be deemed a putative spouse, spousal support, attorney fees, sealing of confidential PG&E settlement information, and child support regarding the parties’ child Millicent (DOB: 10/29/2014). The confidential settlement information has been resolved by stipulation of the parties. This order addresses the remaining issues.

Putative Spouse Determination

Mother and Respondent Daniel Erman (Father) both agree the issue of whether Mother is a putative spouse should be bifurcated; they disagree on how the Court should decide it. Mother requests an evidentiary hearing, whereas Father requests the Court resolve the matter at the RFO hearing based on the competing declarations filed by the parties. Wife’s status as a putative spouse under Family Code section 2251 requires a good faith belief in the validity of the marriage. This analysis is a subjective one, focused on the “actual state of mind of the alleged putative spouse” informed by the totality of the circumstances. (*Ceja v. Rudolph & Sletten, Inc.*, (2013) 56 Cal.4th 1113, 1128.) Both parties’ filings demonstrate the Court will have to make credibility determinations as part of this analysis, which cannot be done on paper. Mother’s request for an evidentiary hearing is GRANTED. The parties are to appear ready to set trial dates.

Temporary Spousal Support